

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 39-003
Amendments to Title 21 of the Chickasaw Nation Code
(Vehicles and Highways)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations for motor vehicles, and

WHEREAS, the Tribal Legislature desires to amend those rules and regulations.

NOW, THEREFORE, BE IT RESOLVED, that Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 21, Chapter 2, Section 21-204.1 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red; deletions are stricken through; and omissions without deletions of substance are signified by “* * *”):

SECTION 21-204.1 **DISTRACTED DRIVING.**

A. ~~Except in a bona fide emergency situation, it~~ **It** shall be unlawful for any person to operate a Motor Vehicle on any roadway while using a hand-held electronic communication device ~~to manually compose, send or read an electronic text message~~ while the Motor Vehicle is in motion. Any person who violates this section shall be issued a Civil Citation and shall be assessed a civil fine of one hundred dollars (\$100).

B. **The following shall not be considered a violation of distracted driving:**

- 1. Use of a hand-held electronic communication device in a bona fide emergency situation;**
- 2. Use of a device that is physically or electronically integrated into a Motor Vehicle;**
- 3. Use of a voice-operated global positioning or navigation system that is affixed to a Motor Vehicle;**

4. Use of an electronic communication device in a hands-free manner; or,
5. Use of an ignition interlock device that has been installed on a Motor Vehicle.

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on February 18, 2022, by a vote of 12 ayes, 0 nays and 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: FEB 18 2022

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Explanation:

This resolutions amends one section in Title 21. The amended section expands the traffic offense of distracted driving.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature